

Rules of the Constitutional Court

RULES OF THE CONSTITUTIONAL COURT — OVERVIEW

Jurisdiction pathways

- Appeals from the Supreme Court of Appeal or a High Court on constitutional matters / arguable points of law of general public importance (s 167 Constitution; Superior Courts Act).
- Direct access in the interests of justice (exceptional).
- Confirmation of declarations of constitutional invalidity made by the High Court or SCA (s 172(2)).

Applications for leave to appeal

Must set out the constitutional matter or point of law of general public importance, prospects of success, and interests of justice. Written argument follows directions.

Practice

Electronic filing and strict page limits apply. The Court often decides leave and merits together or issues directions for further argument.

NOTE: Educational overview. Use the official Constitutional Court Rules and practice directions.

— End of curated extract. Verify official text before reliance. —